

Court No. - 21

Case :- WRIT - C No. - 3765 of 2013

Petitioner :- Smt. Asma Begam

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Rajesh Kumar Singh

Respondent Counsel :- C.S.C.,Dr. S.K. Yadav

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Zaki Ullah Khan,J.

It is submitted by Shri Rajesh Kumar Singh, learned counsel for the petitioner that pursuant to the Order dated 6th August, 2012 passed by this Court in *Civil Misc. Writ Petition No. 37622 of 2012* filed by the petitioner, the Application/ Representation of the petitioner under Paragraph 6.5 of the U.P. Electricity Supply Code, 2005 was decided by the respondent no.2 by the Order dated 10th October, 2012.

It is further submitted that the amount found due from the petitioner under the said Order dated 10th October, 2012 was deposited by the petitioner. However, the submission proceeds, the respondent no.2 has again issued a Notice dated 23.11.2012 reopening the said matter on the ground that the evidence could not be produced by the Executive Engineer (Test).

It is submitted that the respondent no.2 has no power to review the Order passed by him on 10th October, 2012.

The matter requires consideration.

Issue notice pending admission.

Notice on behalf of the respondent no. 1 has been accepted by the learned Standing Counsel.

Notice on behalf of the respondent nos. 2 and 3 has been accepted by Dr. S.K. Yadav, learned counsel for the said respondents.

Counter Affidavit on behalf of the respondents may be filed by 18.2.2013.

Rejoinder Affidavit may be filed by the next date fixed in the matter.

List this case on 5.3.2013.

Heard on the question of grant of interim relief.

Having regard to the facts and circumstances of the case and having considered the submissions made by Shri Rajesh Kumar Singh, learned counsel for the petitioner, Dr. S.K. Yadav, learned counsel for the respondent nos. 2 and 3 and the learned Standing Counsel appearing for the respondent no.1, it is provided that proceedings pursuant to the Notice dated 23.11.2012 (Annexure 13 to the Writ Petition) will remain stayed till the next date fixed

in the matter provided the petitioner continues to deposit the future Electricity Charges.

Order Date :- 23.1.2013

Ajeet...

Court No. - 3

Case :- WRIT - C No. - 3765 of 2013

Petitioner :- Smt. Asma Begam

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Rajesh Kumar Singh

Respondent Counsel :- C.S.C.,Dr. S.K. Yadav

Hon'ble Laxmi Kanta Mohapatra,J.

Hon'ble Mrs. Sunita Agarwal,J.

List in the next cause list.

Interim order granted earlier by this Court shall continue till the next date of listing.

Order Date :- 5.3.2013

PKB

Court No. - 3

Case :- WRIT - C No. - 3765 of 2013

Petitioner :- Smt. Asma Begam

Respondent :- State Of U.P. Thru Secy. And Others

Counsel for Petitioner :- Rajesh Kumar Singh

Counsel for Respondent :- C.S.C.,Dr. S.K. Yadav

Hon'ble Siddhartha Varma,J.

Hon'ble Arun Kumar Singh Deshwal,J.

The case is passed over on the illness slip of Sri Rajesh Kumar Singh, learned counsel for the petitioner.

List on 20 July, 2023 in the additional cause list before the appropriate Bench.

Order Date :- 4.7.2023

S.Chaurasia



2026:AHC:25014-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 3765 of 2013

Smt. Asma Begam

.....Petitioner(s)

Versus

State Of U.P. Thru Secy. And Others

.....Respondent(s)

Counsel for Petitioner(s)	: Rajesh Kumar Singh
Counsel for Respondent(s)	: C.S.C., Dr. S.K. Yadav, Usha Kiran

Court No. - 21

**HON'BLE MAHESH CHANDRA TRIPATHI, J.
HON'BLE KUNAL RAVI SINGH, J.**

1. The matter was taken up in the revised list. However, none appeared on behalf of the petitioner to press the petition, nor has any adjournment slip been moved. Ms. Usha Kiran, learned counsel for the private-respondent and Shri Fuzail Ahmad Ansari, learned Standing Counsel for the State respondents are present.
2. In the absence of any effective representation, it appears that the cause of action has become stale and the writ petition has been rendered infructuous by efflux of time.
3. Accordingly, the writ petition is dismissed as infructuous. Interim order, if any, stands vacated.
4. In case the petitioner feels that the matter survives, liberty is granted to him to move an application for recalling this order within six weeks from today.

(Kunal Ravi Singh,J.) (Mahesh Chandra Tripathi,J.)

February 4, 2026

SA